

Indian Patent Office: Guidelines for Patentability (Page 1)

1. Statutory Patentability Criteria (Section 2(1)(j))

Under the Indian Patents Act 1970, an invention is patentable only if it satisfies three statutory criteria: Novelty (new compared to existing prior art worldwide), Inventive Step (a feature of an invention that involves technical advance as compared to existing knowledge and makes it non-obvious to a person skilled in the art), and Industrial Applicability (the invention is capable of being made or used in an industry).

2. Filing Procedure and Specifications

An applicant may initially file a Provisional Specification to secure a priority date. Within 12 months from the date of filing the provisional application, a Complete Specification detailing full description, best method of performing the invention, and precise patent claims must be submitted to the Patent Office.

Indian Patent Office: Non-Patentable Inventions & TK (Page 2)

3. Section 3(p) Traditional Knowledge Exclusion

Section 3(p) of the Patents Act explicitly states that an invention which in effect is traditional knowledge or an aggregation or duplication of known properties of traditionally known components is not an invention. Therefore, traditional Ayurvedic remedies, known uses of herbs like Neem or Turmeric, or classical decoctions cannot be patented as standalone compositions.

4. Section 3(e) Mere Admixture vs. Synergistic Formulations

Under Section 3(e), a substance obtained by a mere admixture resulting only in aggregation of properties is not patentable. To overcome Section 3(e) and Section 3(p), the applicant must prove technical synergy—experimental evidence demonstrating unexpected biological efficacy beyond the additive effects of the individual herbal ingredients.